

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
EUNICE VAN DE CRUZE

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT OFFICER RICHARD
PHIPPS, POLICE OFFICERS JOHN and JANE
DOES # 1-5, MIRIAM HUNTE, RACHEL HUNTE
and RONALD HUNTE**

Defendants.
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the Plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Queens County as the place of venue based on where the Plaintiff resides and the incident occurred.

Dated: New York, NY
May 28, 2015



REHAN NAZRALI, ESQ.
Attorney for the PLAINTIFF
305 Broadway, 14th Floor
New York, New York 10007
Tel. (212)897-5882

Defendants Address

THE CITY OF NEW YORK
Corporation Counsel, office of Zachary W. Carter
89-17 Sutphin Blvd., 4th Floor,
Jamaica, NY, 11432

MIRIAM HUNTE
153-42 Foch Blvd
Jamaica, NY 11434

RACHEL HUNTE
153-42 Foch Blvd
Jamaica, NY 11434

RONALD HUNTE
153-42 Foch Blvd
Jamaica, NY 11434

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
EUNICE VAN DE CRUZE

Plaintiff,

Index#

COMPLAINT

-against-

**CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT OFFICER RICHARD PHIPPS,
POLICE OFFICERS JOHN and JANE DOES # 1-5,
MIRIAM HUNTE, RACHEL HUNTE and RONALD HUNTE**

Defendant(s),
-----X

NOW COMES the Plaintiff, **EUNICE VAN DE CRUZE**, by and through her attorney,
REHAN NAZRALI, ESQ. as and for her complaint against the Defendants, and respectfully shows to
this Court and allege as follows:

PARTIES:

1. That the Plaintiff, **EUNICE VAN DE CRUZE** (Hereinafter "Plaintiff") is presently a resident of the Queens County, in the City and State of New York.
2. At the time of the incident, the Plaintiff was a resident of the City and State of New York and County of QUEENS.
3. Upon information and belief, that at all times, **THE CITY OF NEW YORK**, hereinafter referred as Defendant **CITY**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, that at all times, **DEFENDANT CITY**, by and through the actions of its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including Defendant Police Officer **RICHARD PHIPPS** and Police Officers of the 114 Precinct **JOHN/JANE DOES #1-5**.
5. Upon information and belief, at all times hereinafter mentioned, and on or prior to May 31, 2014, Defendants, Police Officer **RICHARD PHIPPS** and Police Officers **JOHN/JANE DOES #1-5**, were employed by **DEFENDANT CITY**, as police officers.
6. Upon information and belief, that at all times **MIRIAM HUNTE**, hereinafter referred to as "**DEFENDANT MIRIAM**" is a natural person who, on information and belief, resides in the County of Queens, City and State of New York.
7. Upon information and belief, that at all times **RACHEL HUNTE**, hereinafter referred to as "**DEFENDANT RACHEL**" is a natural person who, on information and belief, resides in the County of Queens, City and State of New York.
8. Upon information and belief, that at all times **RONALD HUNTE**, hereinafter referred to as "**DEFENDANT RONALD**" is a natural person who, on information and belief, resides in the County of Queens, City and State of New York.
9. That William J. Bratton is the Police Commissioner of the New York City Police Department and as such issues policies, procedures, and protocols followed by his officers.
10. That upon information and belief, Police Commissioner Bratton has a policy and custom of condoning, allowing, and turning a blind eye to NYPD police officers who violate the law by acceding to and being improperly influenced by persons of alleged social and political influence who without presenting sufficient proof thereto affirmatively and impermissibly importune said Police to execute illegal acts of intimidation and harassment including but not

limited to engaging in false arrests and imprisonments of lawful citizens without just cause therefore and with conspiracy to do so.

11. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Sections 1981, 1983, et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.
12. This action also arises under the rights under the Constitution and laws of the State of New York.
13. Each and all of the acts of the Defendant City alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense of State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of Queens, and under the authority of their office as police officers of said state, City and County.
14. That the amount in controversy against Defendant City and Police Officers are in excess of jurisdictional limits of the lower Court exclusive of interest.

CONDITION PRECEDENT:

15. That the Notice of Plaintiff's Claim for False arrest, False imprisonment, malicious prosecution, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant No.1 **THE CITY OF NEW YORK** on August 29, 2014, the same being filed within 90 days after the causes of action had accrued.

16. More than Thirty (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.
17. That the Defendants CITY has failed, neglected and refused to pay, settle, compromise or adjust the Plaintiff's claim.
18. That on or about November 19, 2014 a 50-h hearing was actually held at the offices of the Krez & Flores located at 225 Broadway, suite 2800, NY NY 10007 before an employee, agent, and/or representative of the Defendant CITY.
19. The Plaintiff has complied with all the conditions precedent to the commencement of these causes of actions.

FACTS

20. That there are multiple occurrences evincing a grave pattern of serious legal and constitutional violations all of which gave rise to this complaint and the several causes of action subsumed thereunder all of which took place and arose in the County of Queens, City and State of New York.
21. That Plaintiff and her partner **SEFIR CARMONA** took up residency and possession of the premises known as 130-66 228th St, Laurelton, NY 11413 as a result of an invitation to do so by Defendants **MIRIAM HUNTE** and **RACHEL HUNTE**, persons who resided thereto and had a possessory interest in the property when they invited Plaintiff to take up residency in the property.
22. That Plaintiff agreed to take possession of the property, renovate and eventually purchase same though same was in foreclosure proceedings. Accordingly, when Plaintiff moved in, Miriam and Rachel moved out giving Plaintiff complete unfettered and total possession of said premises.
23. That once Plaintiff and her partner took possession of the aforesaid property and began to make significant improvements to the property Miriam, Rachel and Ronald decided to renege on their

- original agreement and schemed, planned and conspired together, each of them, to drive and force out Plaintiff from the property through a pattern of repeated harassment and intimidation.
24. That on May, 31 2014 Plaintiff and her partner had been residing in said premises for over 30 days, as of right.
25. That on May 31st, 2014 Plaintiff and her partner, **SEFIR CARMONA**, together, were packing their luggage preparing to visit with and attend her niece Samantha's High School Graduation in Maryland.
26. That Defendants **MIRIAM HUNTE** and **RACHEL HUNTE**, both of whom are Plaintiff's cousins, were warned by fellow family members to not visit the property while Plaintiff and **SEFIR CARMONA** resided there.
27. That the aforesaid family members who instructed the Defendants as such, were requested to do so by Plaintiff because of her awareness of how confrontational **MIRIAM** was.
28. That evidently, **MIRIAM** disregarded all the requests to stay away from the property.
29. That on May 31, 2014, while Plaintiff was in the midst of the process of preparing to visit with and attend her niece Samantha's High School Graduation in Maryland, **MIRIAM** came to the same property and provoked an argument with Plaintiff.
30. That upon information and belief **MIRIAM** had come to the property with the aim of harassing and intimidating Plaintiff.
31. That in an effort to prevent further escalation of the argument between **MIRIAM** and Plaintiff, a male neighbor and **SEFIR CARMONA** sequestered and separated **MIRIAM** from Plaintiff.
32. That during the commotion, Plaintiff fell and dropped her cell phone that was heretofore been placed in Plaintiff's back pocket.
33. That Plaintiff then proceeded to pick up her phone and subsequently went inside the home to continue packing.
34. That **MIRIAM** then created a commotion outside the home.

35. That **MIRIAM** called 911 and complained that Plaintiff had stolen her phone.
36. That at least four of the Defendants, Police Officers of the 105th Precinct (hereinafter referred to as **JOHN** and **JANE DOES 1-4**), arrived on the scene.
37. That **JOHN** and **JANE DOES 1-4** verified that the phone Plaintiff picked up was indeed her own.
38. That **JOHN** and **JANE DOES 1-4** verified that **MIRIAM's** cell phone was not in Plaintiff's possession.
39. That nevertheless, another Defendant, a Police Officer Sergeant (hereinafter referred to as **JOHN DOE 5**) arrived on the scene and arrested Plaintiff on the charge of stealing a cell phone.
40. That Plaintiff protested her arrest but cooperated with the Police Officers. The Police officers cuffed Plaintiff, did not read her miranda rights and but took her in the back of their patrol car to the 105th Precinct where she was photographed, fingerprinted and processed. She remained at the 105th Precinct for several hours until she was transferred to Central Booking. She remained at Central booking until the next morning when she saw a judge and was arraigned and released on her own recognisance.
41. That while Plaintiff was detained on the aforesaid charge [**Case # 2014QN031993**], **MIRIAM** went to the 105th Precinct and pressured the Police Officers thereat to issue an assault charge, in addition to the aforesaid cell phone theft charge, against Plaintiff.
42. That upon information and belief, **MIRIAM** claimed that Plaintiff had hit her with an iron object and bruised her head.
43. That upon being released without bail for the cell phone charge, Plaintiff proceeded home.
44. That on June 1, 2014, a mere nine hours after being released for the previous cell phone charge, police officers from the 105th Precinct appeared at Plaintiff's home, lured her to the 105th Precinct police station to purportedly fill paperwork, but upon her entry to the same station,

actually cuffed and re-arrested her for the assault charge that **MIRIAM** had brought against her while she was detained on the previous cell phone charge.

45. That plaintiff was terrified upon this second arrest and emotionally, physically and mentally overwrought.
46. While plaintiff was detained for the second time she began experiencing a headache and was gasping for air. She had also not eaten in twenty four hours. She felt drained, sick, weak and suicidal. Her blood pressure had escalated because of the stress and chest pains she felt. When she requested medical aid from the nurse at central booking she was told that she would be handcuffed to a hospital bed and that admission to the hospital would delay her release.
47. That Plaintiff continued to insist that she needed medical care which the nurse and police officers continued to refuse.
48. That Plaintiff was released from central booking without seeing a judge and put out onto the street without a phone or money to make a phone call.
49. That family members reached out to **MIRIAM** and pleaded with her to stop making false charges against the Plaintiff, and to speak the truth.
50. That **MIRIAM** responded to the aforesaid requests from the family members by telling them that she would drop the charges against Plaintiff on the condition that Plaintiff move out of the property.
51. That also on May 31, 2014, while Plaintiff was still incarcerated for the alleged cell phone theft, upon information and belief, **MIRIAM HUNTE, RACHEL HUNTE, RONALD HUNTE**, broke into her home tampered with the locks and vandalized the property.
52. That on June 1, 2014 while Plaintiff was detained for the assault charge Defendants **MIRIAM HUNTE, RACHEL HUNTE and RONALD HUNTE** (hereinafter "HUNTES") and one unidentified, bald headed, black male conspired and did again break into the home of the

Plaintiff, threatened Plaintiff's partner, **SEFIR CARMONA**, who was home and removed plaintiff's belongings from the home.

53. That while Miriam had broken into Plaintiff's premises she called the Police and Police officers from the 105th Precinct arrived at the subject property. Thereupon Miriam complained that Plaintiff was vandalizing her own property and attempted to induce and persuade those police officers to make a forceful eviction of Plaintiff's partner, **SEFIR CARMONA** and Plaintiff from the property
54. That on June 6, 2014, **RACHEL HUNTE** willfully broke into the Plaintiff's home and stole mail from the home that belonged to the Plaintiff. Plaintiff alerted the Federal Postal Inspector about the theft (**Case # CA118306896**). The Federal Postal Inspector suggested that Plaintiff should get an Order of protection against **RACHEL HUNTE**.
55. That on June 8, 2014, while the Plaintiff and her partner, **SEFIR CARMONA** were at home, the same unidentified, bald headed, black male willfully broke into the home through the front door and threatened Plaintiff and her partner, **SEFIR CARMONA**.
56. That this unidentified, bald headed, black man threatened Plaintiff and her partner **SEFIR CARMONA** with bodily injury if they obstructed **MIRIAM** and **RACHEL** as they removed Plaintiffs' personal belongings.
57. That Plaintiff quickly called 911 and the Police officers from the 105th Precinct responded to the call. That these officers then willfully and wrongly concluded that **MIRIAM** and **RACHEL** were entitled to remove items from the home and permitted **MIRIAM HUNTE** and **RACHEL HUNTE** with their accomplice to remain on the premises without Plaintiff's consent and to remove Plaintiff's belongings including, her wallet and photographs. .
58. That among other things, Defendant **MIRIAM HUNTE** did willfully and intentionally violate Order of Protection on many occasions including July 3, 2014, July 20, 2014 and August 5, 2014 by intentionally placing her minor daughter that was included in the Order of Protection

in the same house with the Plaintiff; by sponsoring a third party to communicate with the plaintiff on July 3, 2014 via phone conversation; also by using fraud on the court on July 20, 2014 and received permission to enter the house where plaintiff and her partner still remain. All these violations were done intentionally and willfully committed to place fear in the mind of the Plaintiff and her partner, **SEFIR CARMONA**.

59. That the assault charge against Plaintiff was later dismissed and sealed by the prosecutor's office.
60. That the Plaintiffs arrests were without any credible reason or reasonable suspicion and thereafter she has been maliciously prosecuted and falsely charged with a crime.
61. That as a result of these false arrests, false imprisonments, malicious prosecution, and negligent unskilled police work, the Plaintiff was caused to be in pain due to the tightness of the cuffs, suffered embarrassment, shame, humiliation, trauma and economic and employment damages as a result of being detained, arrested and incarcerated and prosecuted.
62. That the aforesaid condition was the direct result of the Negligence of the City of New York and New York City Police Department, its officers, and agents in the performance of their duties and in the scope of their employment.
63. That as a result of said repeated unlawful invasions, intrusions and frequent threats from the Defendants "HUNTES" Plaintiff suffered embarrassment, fear, shock, depression, emotional pains, embarrassment, shame, humiliation, trauma and economic and employment damages as a result of being detained, arrested and incarcerated and prosecuted.
64. That the defendants willfully, intentionally, collectively and individually exercised the actions and inactions that caused Plaintiff to suffer irreparable injuries and damages as set forth in this complaint.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR FALSE ARREST AND FALSE IMPRISONMENT AGAINST THE DEFENDANT CITY
OF NEW YORK, POLICE OFFICERS RICHARD PHIPPS AND JOHN AND JANE DOES
#1-5:

65. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-64, of this Complaint as though fully plead and re-alleged in their entirety below.
66. That the false arrests and false imprisonments that took place on May 31 2014 and June 1, 2014 at the subject times and place by the defendant City through and by the actions of its agents, servants and employees, namely the aforesaid Police Officer did arrest and confine the Plaintiff without warrant; that the plaintiff was conscious of the confinement and did not consent to the confinement, and that the confinement was not otherwise privileged.
67. That the aforementioned false arrest and false imprisonment of the Plaintiff was carried out by police officers and or other servants, agents and/or employees of the defendant **THE CITY OF NEW YORK**.
68. That the aforementioned false arrest and false imprisonment of the Plaintiff **EUNICE VAN DE CRUZE** was carried by defendant **PHIPPS**, and or other servants, agents and or/or employees of the defendant **THE CITY OF NEW YORK**.
69. That by reason of the foregoing, the Plaintiff **EUNICE VAN DE CRUZE** was injured; was rendered sick sore lame and disabled; was and or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief her injuries are permanent in nature and effect.
70. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

71. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in a reckless disregard for the safety of others, as well as having performed intentional acts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE FOR NEGLIGENCE IN HIRING,
TRAINING SUPERVISING AS AGAINST THE DEFENDANT CITY:

72. The Plaintiff, **EUNICE VAN DE CRUZE** hereby incorporates by reference each and every preceding paragraph, numbered 1-71, of this Complaint as though fully plead and re-alleged in their entirety below.
73. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.
74. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in their exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the Plaintiff.
75. That the Defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining its employees, to wit the above named individuals **DEFENDANTS** Police Officer **RICHARD PHIPPS** and Police Officers **JOHN/JANE DOES 1-5**, in that the said Defendants lacked the experience deportment and ability to be employed by the CITY.
76. That the Defendant failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employee who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; and in that they hired and retained

as an employee of their police department individuals whose backgrounds contained information (based information and belief) that revealed said Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendant; in that the Defendants knew of the lack of ability, experience, deportment and maturity of said Defendant employee when they hired him to be an employee; and, in that the Defendants their agents, servants and employees were otherwise careless, negligent, and reckless.

77. That the aforesaid occurrence, to wit, the improper and insufficient training, false arrest and imprisonment, and resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
78. That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and she was rendered emotionally and mentally distressed and so remains.
79. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
80. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in a reckless disregard for the safety of others, as well as having performed intentional acts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR MALICIOUS PROSECUTION AGAINST DEFENDANT CITY:

81. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-80, of this Complaint as though fully plead and re-alleged in their entirety below.

82. That the Defendant CITY commenced a criminal proceeding against the Plaintiff, that the same prosecution terminated in Plaintiff's favor, and that there was an absence of a reasonable finding of both probable cause and actual malice to initiate such same criminal proceeding against the Plaintiff.
83. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of her liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and the said Plaintiff has been otherwise damaged.
84. That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and she was rendered emotionally and mentally distressed and so remains.
85. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
86. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in a reckless disregard for the safety of others, as well as having performed intentional acts

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS AS AGAINST THE
DEFENDANTS CITY OF NEW YORK, POLICE OFFICERS RICHARD PHIPPS AND JOHN
AND JANE DOES #1-5

87. The Plaintiff, EUNICE VAN DE CRUZE, hereby incorporates by reference each and every preceding paragraph, numbered 1-86, of this Complaint as though fully plead and re-alleged in their entirety below.

88. That the Defendant CITY, by and through the actions of its employees, agents or subagents, to wit the Defendant Police Officers RICHARD PHIPPS and JOHN and JANE DOES #1-5, negligently arrested Plaintiff when they knew, or should have known, that she did not commit any crimes, and engaged in negligent conduct which is not expected or to be tolerated in a civilized society.
89. That due to Defendants' negligent and outrageous conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and she was severely rendered emotionally and mentally distressed and so remains.
90. That such extreme and outrageous conduct shocks the conscious and Plaintiff demands damages therefrom.
91. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
92. The within action falls within one or more of the exceptions as contained in Article 16 of the Civil Practice Laws and Rules, section 1602 (2) (iv) in that it involves: liability arising by reason of a non-delegable duty or by reason of the doctrine of respondeat superior.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS AS AGAINST
DEFENDANTS CITY OF NEW YORK, POLICE OFFICERS RICHARD PHIPPS AND JOHN
AND JANE DOES #1-5

93. The Plaintiff, EUNICE VAN DE CRUZE, hereby incorporates by reference each and every preceding paragraph, numbered 1-92, of this Complaint as though fully plead and re-alleged in their entirety below.
94. That the Defendant CITY, by and through the actions of its employees, agents or subagents, to wit the Defendants Police Officers RICHARD PHIPPS and JOHN and JANE DOES #1-5, engaged in extreme and outrageous conduct, namely the aforementioned malicious prosecution

and multiple false arrests and imprisonments, with the intent to cause, or with the intentional disregard of a substantial probability of causing, severe emotional distress to the Plaintiff.

95. That due to the Defendant CITY's extreme and outrageous conduct, by and through the actions of its employees, agents or subagents, to wit the aforementioned Defendant Police Officers, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress.

96. That such extreme and outrageous conduct shocks the conscious, is not expected or to be tolerated in a civilized society, and Plaintiff demands damages therefrom.

97. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

98. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in a reckless disregard for the safety of others, as well as having performed intentional acts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR FALSE ARREST AND FALSE IMPRISONMENT AGAINST THE DEFENDANT
MIRIAM HUNTE

99. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-98, of this Complaint as though fully plead and re-alleged in their entirety below.

100. That the false arrests and false imprisonments that took place on May 31 2014 and June 1, 2014 at the subject times and place by the defendant City through and by the actions of its agents, servants and employees, namely the aforesaid Police Officers, did occur and did happen, in part as a result of defendant MARIAM HUNTES false accusations, importunings and inducements made to said Police officers to effect said arrests and confinements and that said Police Officers upon said importunings and inducements did arrest and confine the

Plaintiff without warrant; that the plaintiff was conscious of the confinement and did not consent to the confinement, and that the confinement was not otherwise privileged.

101. That the aforementioned false arrest and false imprisonment of the Plaintiff was carried out in part due to the actions of MARIAM HUNTE in inducing and importuning said police officers and or other servants, agents and/or employees of the defendant THE CITY OF NEW YORK. .

102. That by reason of the foregoing, the Plaintiff EUNICE VANDECRUZE was injured; was rendered sick sore lame and disabled; was and or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief her injuries are permanent in nature and effect.

103. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

104. The within action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in a reckless disregard for the safety of others, as well as having performed intentional acts.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS AS AGAINST
DEFENDANT MIRIAM HUNTE:

105. The Plaintiff, EUNICE VAN DE CRUZE, hereby incorporates by reference each and every preceding paragraph, numbered 1-104, of this Complaint as though fully plead and re-alleged in their entirety below.

106. That the Defendant MIRIAM HUNTE engaged in extreme and outrageous conduct, namely the aforementioned importuning and inducing of the aforesaid Police Officers to initiate and make multiple false arrests and imprisonments, with the intent to cause, or with the

intentional disregard of a substantial probability of causing, severe emotional distress to the Plaintiff.

107. That due to the Defendant **MIRIAM HUNTE**'s extreme and outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress.

108. That such extreme and outrageous conduct shocks the conscious, is not expected or to be tolerated in a civilized society, and Plaintiff demands damages therefrom.

109. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR THE EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE FOR
FOR INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS
AS AGAINST DEFENDANT RACHEL HUNTE:

110. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-109 of this Complaint as though fully plead and re-alleged in their entirety below.

111. That the Defendant **RACHEL HUNTE** engaged in extreme and outrageous conduct, namely the the aforementioned importuning and inducing of the aforesaid Police Officers to initiate and make aforementioned multiple false arrests and imprisonments, with the intent to cause, or with the intentional disregard of a substantial probability of causing, severe emotional distress to the Plaintiff.

112. That due to the Defendant **RACHEL HUNTE'S** extreme and outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress.

113. That such extreme and outrageous conduct shocks the conscious, is not expected or to be tolerated in a civilized society, and Plaintiff demands damages therefrom.

114. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE FOR
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AS AGAINST DEFENDANT RONALD HUNTE:

115. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-114 of this Complaint as though fully plead and re-alleged in their entirety below.

116. That the Defendant **RONALD HUNTE** engaged in extreme and outrageous conduct, namely the the aforementioned importuning and inducing of the aforesaid Police Officers to initiate and make the aforementioned multiple false arrests and imprisonments, with the intent to cause, or with the intentional disregard of a substantial probability of causing, severe emotional distress to the Plaintiff.

117. That due to the Defendant **RONALD HUNTE'S** extreme and outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress.

118. That such extreme and outrageous conduct shocks the conscious, is not expected or to be tolerated in a civilized society, and Plaintiff demands damages therefrom.

119. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR UNLAWFUL INVASION OF PRIVACY AND INTRUSION AGAINST MIRIAM
HUNTE AND RACHEL HUNTE:

120. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-119, of this Complaint as though fully plead and re-alleged in their entirety below.

121. That the aforesaid occurrences, to wit: intrusion and invasion of privacy by unlawful repeated broke into house and taking pictures of private and personal items, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the affirmative unlawful and impermissible conspiracy, confederation, collective efforts, importuning and inducing by Defendants **POLICE OFFICERS JOHN and JANE DOES #1-5 and MIRIAM AND RACHEL HUNTES** to act in the manner described without any negligence or wrongdoing on the part of Plaintiff.
122. That the acts of the Defendants **POLICE OFFICERS JOHN and JANE DOES #1-5 and MIRIAM AND RACHEL HUNTES** were malicious, deliberate and designed to thwart Plaintiff in her free expression of her Constitutionally protected First Amendment Rights and that such acts by Defendants **POLICE OFFICERS JOHN and JANE DOES #1-5 and MIRIAM AND RACHEL HUNTES** presents a clear and present danger to the citizens of the City and State of New York.
123. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain and severe emotional distress, and she was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees.
124. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR THE ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR CIVIL RIGHT ACTION 42 USC § 1983
AS AGAINST THE DEFENDANT CITY:

125. The Plaintiff, **EUNICE VAN DE CRUZE** hereby incorporates by reference each and every preceding paragraph, numbered 1-124, of this Complaint as though fully plead and re-alleged in their entirety below.

126. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States, 42 U.S.C. §§ 1983 and 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
127. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned and deprived of her Constitutional rights as set forth in the Constitution of the United States, particularly in 42 USC §1981 and §1983, and as set forth in the Constitution of the State of New York.
128. That Defendant Police Officers, by engaging in this unlawful conduct of falsely arresting Plaintiff for crimes they knew she did not commit, all under the color of State law and without a warrant or probable cause, and then falsely arresting and imprisoning Plaintiff, severely deprived Plaintiff of her constitutional rights.
129. That Defendants Police Officer **RICHARD PHIPPS** and Police Officers **JOHN/JANE DOES 1-5** accordingly deprived Plaintiff of her civil rights pursuant to 42 U.S.C.A. § 1983. Furthermore, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendant Police Officers were acting under the color of State law when they violated Plaintiff's rights.
130. That the aforementioned misuse of authority and power by Defendants Police Officer **RICHARD PHIPPS** and Police Officers **JOHN DOES 1-5**, all of which was tolerated and condoned by the City of New York through its Police Commissioner, William J. Bratton, and Mayor Bill de Blasio, was utterly egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from her unlawful confinement against her will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

131. Such deprivations were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances and statutes of the State of New York.
132. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
133. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.
134. That Defendants, their agents, servants and employees in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
135. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
136. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.
137. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.

138. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
139. That the Plaintiff demands attorney fees should she prevail in her 42 USC Section § 1983 claims against the individually named Defendant Police Officers and **CITY OF NEW YORK**.
140. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
141. The within action falls within one or more of the exceptions as contained in Article 16 of the Civil Practice Laws and Rules, section 1602 (2) (iv) in that it involves: liability arising by reason of a non-delegable duty or by reason of the doctrine of respondeat superior.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
CIVIL RIGHTS ACTION 42 USC § 1985(3)
AS AGAINST THE DEFENDANT CITY AND DEFEDANTS MIRIAM HUNTE,
RACHEL HUNTE AND RONALD HUNTE:

142. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-141, of this Complaint as though fully plead and alleged in their entirety below.
143. The Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned and deprived of her Constitutional rights as a result of this conspiracy by the NYPD arresting officers.
144. That at all times hereinafter mentioned, the Defendant **CITY**, by and through the actions of its agents, subagents, servants, or employees, to wit Police Officer **RICHARD PHIPPS** and Police Officers **JOHN/JANE DOES 1-5** and each of them, separately and in concert conspired with the aforesaid Defendant **HUNTES** for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and

immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and the State of New York:

- a. The right of the Plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
- b. The right of the Plaintiff to be informed of the nature and cause of the accusation against her so secured to her under the Sixth and Fourteenth Amendments of the Constitution of the United States; and,
- c. The right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

145. That by reason of the aforesaid violations, false arrests and false imprisonments, and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled her to abandon her rights and privileges as provided to her in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1983 and 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of her rights, privileges or immunities received by Constitution of the United States of America, and

provided to her by the Constitution of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in her character and reputation, was prevented from attending her usual business and vocation and was injured in her reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

146. That by reason of the aforesaid violations, to wit the false arrests and false imprisonments caused by the Defendants, who wrongfully deprived the Plaintiff and compelled her to abandon her rights and privileges as provided to her in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

147. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

148. The within action falls within one or more of the exceptions as contained in Article 16 of the Civil Practice Laws and Rules, section 1602 (2) (iv) in that it involves: liability arising by reason of a non-delegable duty or by reason of the doctrine of respondeat superior.

AS AND FOR THE THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF EUNICE VAN DE CRUZE
FOR CIVIL RIGHT ACTION 42 USC §1983
AS AGAINST THE DEFENDANT RICHARD PHIPPS AND JOHN/JANE DOES #1-5:

149. The Plaintiff, EUNICE VAN DE CRUZE hereby incorporates by reference each and every preceding paragraph, numbered 1-148, of this Complaint as though fully plead and re-alleged in their entirety below.

150. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United

States, and 42 U.S.C. §§ 1983 and 1985 (3), and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

151. That the amount in controversy exceeds, exclusive of interest and costs the jurisdictional limits of this and any other court having jurisdiction.

152. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned and deprived of her Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1983 and the Constitution of the State of New York.

153. That Defendant Police Officers, by engaging in this unlawful conduct of falsely arresting Plaintiff for crimes they knew she did not commit all under the color of State law without a warrant, or probable cause and then falsely arresting and imprisoning Plaintiff, severely deprived Plaintiff of her constitutional rights.

154. That Defendants Police Officer **RICHARD PHIPPS** and Police Officers **JOHN/JANE DOES 1-5** accordingly deprived Plaintiff of her civil rights pursuant to 42 U.S.C.A. § 1983. Further, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendant Police Officers were acting under the color of State law when they violated Plaintiff's rights.

155. That the aforementioned misuse of authority and power by Defendants Police Officer **RICHARD PHIPPS** and Police Officers **JOHN DOES 1-5** all of which was tolerated and condoned by the City of New York through its Police Commissioner, William J. Bratton and Mayor Bill de Blasio, was utterly egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from her unlawful confinement against her will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

156. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983. And the laws, ordinances and statutes of the State of New York to wit:
157. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
158. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
159. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
160. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
161. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
162. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

163. As a result of the aforesaid Defendants **RICHARD PHIPPS** and **JOHN/JANE DOES** #1-5 deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the jurisdictional limits of all lower courts.
164. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
165. That the Plaintiff demands attorney fees should she prevail in her 42 USC Section § 1983 claims against the individually named police officers and **CITY OF NEW YORK**.
166. Should Plaintiff be victorious, she intends to assert a claim for attorney fees on her federal claims pursuant to 42 USC section 1983 and 1985(3) et seq.

AS AND FOR THE FOURTEENTH CAUSE OF ACTION
ON BEHALF OF EUNICE VAN DE CRUZE
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:
AS AGAINST THE DEFENDANT CITY:

167. The Plaintiff, **EUNICE VAN DE CRUZE**, hereby incorporates by reference each and every preceding paragraph, numbered 1-166 of this Complaint as though fully plead and re-alleged in their entirety below.
168. That should Plaintiff be victorious she intends to assert claims for attorney fees on her federal claims pursuant to 42 USC section 1988.

WHEREFORE, the Plaintiff requests a trial by jury of all issues involved in this Complaint, and a judgment against the Defendants, as follows:

- (1) Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- (2) Punitive damages where permitted in the sum which exceeds the jurisdictional limits of all lower courts.
- (3) Damages for emotional distress in an amount to be established by proof of trial;
- (4) An award of reasonable attorney's fees, and costs and disbursements of this action; and

(5) Such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
May 28th, 2015

A handwritten signature in black ink, appearing to read 'Rehan Nazrali', is written over a horizontal line.

REHAN NAZRALI, Esq.
305 Broadway, 14th Floor
New York, NY 10007
Tel. 212-897-5882

ATTORNEY VERIFICATION

REHAN NAZRALI, ESQ., an attorney admitted to practice in the courts of New York State, states as follows: I am attorney of record for the Plaintiff(s), in the within action, I have read the foregoing VERIFIED AMENDED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by the Plaintiff(s) is that the Plaintiff(s) do/does not reside in the county where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are information contained in the file and communications with my client. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
May 28, 2015



Rehan Nazrali, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

EUNICE VAN DE CRUZE

Plaintiff

Index#

-against-

**SUMMONS AND
VERIFIED COMPLAINT**

**CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT OFFICER RICHARD PHIPPS,
POLICE OFFICERS JOHN and JANE DOES # 1-5,
MIRIAM HUNTE, RACHEL HUNTE and RONALD HUNTE**

Defendant,

REHAN NAZRALI, ESQ.

305 Broadway, 14th Floor
New York, NY 10007
Tel. 212-897-5882

**To: ALL COUNSEL
Attorney(s) for
THE PETITIONER**

Service of a copy of the within SUMMONS AND VERIFIED COMPLAINT

Attorney(s) for Defendants

Counselor(s) : Please Take notice

NOTICE OF ENTRY

**that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on**

NOTICE OF SETTLEMENT

**that an order for of which the within is a true copy will be presented for
settlement to the HON. one of the justices of the within named Court at
the within is a (certified) true copy of a duly entered**